

APPROVED

By Alessandra at 6:05 am, Aug 04, 2021

City Contract # _____

MPO Contract # 187462

PROFESSIONAL SERVICES AGREEMENT
for the
2022 Transit Development Plan

PREAMBLE

THIS AGREEMENT is made and entered into this _____ day of _____, 2021, by and between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, hereinafter referred to as the “MPO,” and LSC Transportation Consultants, Inc., hereinafter referred to as “Consultant.” The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO’s Fiscal Manager in accordance with Contract #6111.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK.

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE.

The work included in this Scope of Work will be completed in accordance with the project schedule attached hereto as Exhibit B, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. COMPENSATION.

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant a total amount of Ninety-Nine Thousand Seven Hundred Eleven Dollars (\$99,711.00), in accordance with the fee schedule provided in Exhibit C, which is attached to this Agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant’s progress, verified by the MPO, in completing the work as described in Exhibits A, B, and C. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings, and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation to the extent the MPO has satisfied its payment obligations to the Consultant. A portion of the payment may be held until any claims are resolved.

4. CONSULTANT RESPONSIBILITY.

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. GIS MAPS AND DIGITAL DATA.

If the Consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in Exhibit A, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

6. GIS DATA LIMITATION AND DISCLAIMED LIABILITY.

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user.

7. COMPLIANCE WITH LAWS.

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

8. DRUG-FREE WORKPLACE.

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

9. INDEMNIFICATION/HOLD HARMLESS.

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses

incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

10. **INSURANCE REQUIREMENTS.**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;

- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of workers’ compensation and professional liability insurance and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

- 11. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES. 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
- 12. MPO REPRESENTATIVE.
Prior to commencement of work, the MPO will designate in writing, an MPO Representative who shall make, within the scope of his/her authority, all necessary

decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.

13. MONTHLY REPORT.

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT.

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES.

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS.

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT.

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES.

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the agreement as continuing and require specific performance.

19. TERMINATION BY MPO.

The MPO Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this Agreement in whole or in part at any time, for the MPO's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the MPO will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

20. ADDITIONAL REMEDIES.

In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

21. GOVERNING LAW, JURISDICTION AND VENUE.

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

22. GOVERNMENTAL IMMUNITY.

The State of Wyoming, the Wyoming Department of Transportation (WYDOT), the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their governmental or sovereign immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental or sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserve all immunities and defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

23. ENVIRONMENTAL POLICY ACTS.

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules, or regulations.

24. HUMAN TRAFFICKING.

As required by 22 U.S.C. § 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect;
or
- c. Uses forced labor in the performance of the award or sub-awards under the award.

25. KICKBACKS.

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

26. LIMITATIONS ON LOBBYING ACTIVITIES.

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its sub-consultants in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

27. MONITORING ACTIVITIES.

The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

28. NON-DISCRIMINATION.

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, the Age Discrimination Act of 1975, and any properly promulgated rules and regulations thereto and shall not discriminate

against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this Agreement.

29. PROFESSIONAL REGISTRATION.

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.

30. PUBLICITY.

Any publicity given to the program or services provided herein including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify Cheyenne MPO, WYDOT and/or the Federal Highway Administration as the sponsoring agency and shall not be released without prior written approval of Cheyenne MPO and WYDOT.

31. SUSPENSION AND DEBARMENT.

By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and 44 C.F.R. Part 17, or are on the debarred vendors list at www.epls.gov. Further, the Consultant agrees to notify Cheyenne MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.

32. NO GOVERNMENT OBLIGATION TO THIRD PARTIES.

No Obligation by the Federal Government.

- a. The Consultant acknowledges and agrees that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Agreement and shall not be subject to any obligations or liabilities to the Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.
- b. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the Federal Transit Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

33. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS.

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, “Program Fraud Civil Remedies,” 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.

34. FEDERAL CHANGES. 49 C.F.R. Part 18

Consultant shall at all times comply with all applicable FTA regulations, policies, procedures, and directives including, without limitation, those listed directly or by reference in the Agreement (Form FTA MA (18) dated October 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant’s failure to so comply shall constitute a material breach of this Agreement.

35. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS.
FTA Circular 4220.1F

Applicability: *The incorporation of FTA terms applies to all contracts.*

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any

act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.

36. LOBBYING. 31 U.S.C. § 1352 – 49 C.F.R. Part 19 - 49 C.F.R. Part 20
Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352, as amended by the Lobbying Disclosure Act of 1995, 2 U.S.C. § 1601, *et seq.* Consultants who apply or bid for an award of \$100,000 or more shall file the certification required by 49 C.F.R. Part 20, “New Restrictions on Lobbying”. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay a person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. § 1352. Such disclosures are forwarded from tier to tier up to the recipient.
37. ADA ACCESSIBILITY. 42 U.S.C. § 12101, *et seq.*
Applicability: Facilities construction or renovation contracts.
Facilities to be used in public transportation service must comply with 42 U.S.C. § 12101, *et seq.*, and DOT regulations, “Transportation Services for Individuals with Disabilities (ADA),” 49 C.F.R. Part 37; and Joint ATBCB/DOT regulations, “Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles,” 36 C.F.R. Part 1192 and 49 C.F.R. Part 38. Notably, DOT incorporated reference the ATBCB’s “Americans with Disabilities Act Accessibility Guidelines” (ADAAG), revised July 2004, which include accessibility guidelines for buildings and facilities, and are incorporated into Appendix A to 49 C.F.R. Part 37. DOT also added specific provisions to Appendix A modifying the ADAAG, with the result that buildings and facilities must comply with both the ADAAG amendments thereto in Appendix A to 49 C.F.R. Part 37.
38. PRIVACY ACT. 5 U.S.C. § 552
Applicability: The Federal Privacy Act requirements flow down to each third-party Consultant and their contracts at every tier.
The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:
- a. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure to comply with the terms of the privacy Act may result in termination of the underlying contract.

- b. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

39. MISCELLANEOUS TERMS REQUIRED BY WYOMING DEPARTMENT OF TRANSPORTATION.

a. Special Provisions.

- (i) Conflict of Interest. The subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- (ii) Mandatory Disclosures. The subrecipient must disclose, in a timely manner, in writing to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.

b. General Provisions.

- (i) Amendments. Either party may request changes in this Agreement. Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- (ii) Assumption of Risk. The City shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the City of any state or federal determination of noncompliance.
- (iii) Availability of Funds. Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the City, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the City at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to terminate this Agreement in order to acquire similar services from another party.

- (iv) Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either delivered by hand or certified mail.
- (v) Prior Approval. This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement, and the Wyoming State Auditor shall not draw warrants for payment on this Agreement until this Agreement has been reduced to writing, approved as to form by the Office of the Attorney General, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).
- (vi) Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- (vii) Assignment/Agreement Not Used as Collateral. Neither party shall assign nor otherwise transfer any of the rights or delegate any of the duties set forth in this Agreement without the prior written consent of the other party. The City shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.

40. ENTIRETY OF AGREEMENT.

This Agreement consisting of 13 pages, and Exhibits A, B, and C consisting of 8, 1, and 1 pages respectively, and submitted proposal with negotiated changes, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof. Any timing extension shall be approved in writing by both parties.

Notwithstanding the foregoing, the MPO Master Agreement (Contract #6111) is hereby incorporated into and made a part of this Agreement. This Agreement and the parties thereto shall be subject to the terms of the MPO Master Agreement, and in the event that the terms of the MPO Master Agreement conflicts with the terms of this Agreement, the terms of the MPO Master Agreement shall control.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

Cheyenne Metropolitan Planning Organization
2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Troy Thompson, Chairman
MPO Policy Committee

Date: _____

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Patrick Collins, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

Date: _____

Consultant

LSC Transportation Consultants, Inc.
2504 East Pikes Peak Avenue, Suite 304
Colorado Springs, CO 80909

By: _____

Print Name: Gordon Shaw, PE, AICP

Title: Principal

Date: _____

EXHIBIT A

Attached to Professional Services Agreement between the City of Cheyenne, Wyoming and LSC Transportation Consultants, Inc. for Planning Services in Support of the 2022 Transportation Development Plan.

Project Approach

Our proposed approach is described in the following tasks and is based on the requirements of the RFP and successful completion of similar work in other communities.

TASK 1: PROJECT INITIATION & PROJECT MANAGEMENT

Project administration and coordination will be ongoing throughout the study development process as our team works closely with the Cheyenne MPO and CTP staff. We approach the study acutely aware of the need to incorporate the appropriate agencies, individuals, and representatives—we view our role as an extension of the local MPO and City staff.

We will work with Cheyenne MPO and CTP staff to establish a Project Steering Committee (PSC) which will be responsible for giving feedback on project development and deliverables. We will meet with the PSC on a regular basis, whether in person, by phone, by email, or by web conference, to ensure good communication on upcoming tasks and to make sure the project remains on time and within budget. We will meet with the MPO Citizens' Advisory Committee, Technical Committee, and Transit Advisory Board at key points during the study process to present summaries of progress, to obtain feedback, and to gain input for direction of the plan. We will coordinate these meetings through the PSC.

We will begin by scheduling the kick-off meeting and preparing a data-needs list. Following the kick-off meeting we will prepare a Project Management Plan, with the final scope of work, project schedule, and community outreach, which will guide completion of the TDP. We will develop lines of communication and provide routine updates to ensure that local staff are well aware of our efforts and progress. We will provide monthly invoices detailing staff hours and expenses incurred with a project summary describing the work completed during the previous month, situations that could impact the schedule, and anticipated work for the following month. We will be in contact at key points to discuss any issues and to coordinate upcoming activities. This approach ensures that staff are informed of study progress and any challenges encountered.

Task 1 Deliverables:

- ➔ Kickoff meeting and community familiarization
- ➔ Project Management Plan with final scope of work, schedule, and community outreach plan
- ➔ Monthly meetings with the PSC coordinated with particular deliverables and project activities (see Project Schedule)
- ➔ Meeting materials, agendas, and notes

TASK 2: REVIEW OF EXISTING DOCUMENTS & COMMUNITY CONDITIONS

A key step in our approach is developing a deep understanding of current community conditions and transit needs in order to understand how the community has historically been thinking about transportation needs, priorities, and strategies.

Review of Existing Documents

We will review all pertinent long-term and short-term plans that may have transportation aspects including local comprehensive plans, Cheyenne MPO plans, economic development plans, bicycle and

pedestrian plans, and previous transit plans. We will summarize and present relevant existing documents in annotated form and identify documents that include supportive transit elements.

Analysis of Community Conditions

Our team has experienced staff that are well versed in analyzing community demographic data, housing and socioeconomic data, land use patterns, and commuter-travel-pattern data using the most recent U.S. Census, American Community Survey (ACS), and other applicable data sources. As part of this task, our team will also review and analyze existing safety and transit-performance targets and measures.

In addition to the general population, demographic data will be analyzed for individuals considered by the transportation profession to be dependent upon public transit, including: ambulatory disabled population, youth population, older adult population, low-income population, and population with limited automobile availability. Maps will be prepared showing the characteristics of the transit-dependent population by number, percentage, and density for each US Census block group. From this demographic analysis, as well as input from the PSC, drivers, and the community, we will catalogue and characterize local activity centers and possible transit trip generators in the study area to create an understanding of existing and potential transit use.

Task 2 Deliverables:

➔ The results and analysis of Task 2 will be included in Interim Report #1.

TASK 3: PUBLIC INVOLVEMENT

Public outreach should be a fluid sharing of information, ideas, concerns, and solutions between the agency and the community throughout the duration of the study. To achieve this on this project, we will employ various innovative communication tools to access a variety of forums providing multiple opportunities for the community to learn and voice opinions. However, we don't just inform the public but rather engage them. ***Using our approach, community engagement is not a separate set of tasks but rather an integral part of the full process to develop a recommended service plan.***

Facilitating meaningful community conversations is a key function of any project, and an area where our team stands out and excels by implementing innovative and inclusive public engagement strategies. To engage residents and key stakeholders in a meaningful way, we will employ a robust public engagement process that goes beyond traditional engagement tools and employs a combination of strategies designed to equitably engage all audiences.

Our team recognizes that many people in the Cheyenne community speak Spanish as their primary language. We are committed to meeting the needs of these community members by:

- Ensuring outreach events are located in different neighborhoods, so as to reduce physical barriers to attendance.
- Advertising events and engagement opportunities through a variety of mediums and in English and Spanish.
- Reaching out to multilingual community groups.
- Providing staff supported Spanish translation and interpretation services for community meetings and open houses.

Through our engagement work, we know that you cannot simply translate outreach materials to Spanish to effectively engage the Latino community. We have found Facebook Live, the Spanish radio stations, and community events to be effective ways to engage in conversations about transportation challenges.

Anticipated engagement methods tailored to fit the needs of the planning process are described below.

Community Survey

An online community transportation survey (in English and Spanish) will be performed to gauge the public perception of current and future transportation needs, gaps, and demand in the Cheyenne area, as well as gain insights on the public's thoughts and opinions of existing CTP service. While many people will not participate in public meetings, they may take the time to complete a short online questionnaire at a time that is convenient for them, particularly during COVID-19. However, we understand that there will be residents who cannot or choose not to use the online version so a PDF version will also be made available. The survey link will be posted on the project website, and we will work with the PSC to have it incorporated in newsletters, distributed by local stakeholders, and shared on social media. We will tabulate responses and provide a summary report.

Onboard Survey

Our team proposes to conduct an onboard survey of fixed-route transit riders. However, we recognize that CTP is currently operating a curbside on-demand service, so we will work with the PSC at the kick-off meeting to determine how to best conduct this survey if services remain on-demand or if fixed-route service resumes. An onboard survey is the best means of engaging existing transit riders in the planning process. Many passengers are willing to complete a survey questionnaire during their bus trip, while the number of passengers who typically attend any type of meeting is much lower. The trip origins and destinations and the level of satisfaction with existing CTP services will provide our team and the PSC with insight into the most appropriate transportation services that will maximize system utilization and operational efficiency. A self-administered bilingual (English/Spanish) survey questionnaire will be used to collect the data, and have been used by the LSC team in hundreds of onboard surveys.

Project Website and Promotional Materials

Our team will develop a study website with interactive tools to allow for community input and feedback. All of the online interaction will take place through the study website, including information about the study, project schedule, and upcoming engagement activities. Links to the online survey and comment forms will also be included on the project website. We will use the various outreach efforts to develop an email list of interested individuals and organizations and will use that list to inform community members when new information is posted or when there is an opportunity to participate in the study. We will also provide all necessary project information and electronic materials to the MPO and City for posting on their existing websites.

Promotional materials such as handouts, postcards, and posters can provide basic project information and recruit a variety of audiences to participate in upcoming engagement opportunities. We will develop these materials at key points in the project that describe the project, announce public meetings, drive survey participation, and share important project updates. Handouts and postcards may be distributed at meetings to share project information, while posters may be posted in nearby businesses to announce meetings and engagement activities. Electronic versions can be emailed, posted on the MPO/City websites, shared on social media, and incorporated into existing publications and newsletters.

Community Meetings

We propose to hold community meetings at two key points in the planning process. Community meetings will be held in different areas throughout Cheyenne to provide opportunity for the entire community to participate in this planning process. In addition, a Spanish speaking member of our team will be on site to assist with engagement.

The purpose of the first meeting is to inform the community about the project and findings to-date, obtain preliminary input on the issues and opportunities for improvements, and gather feedback on the community's vision for future transit in Cheyenne. The purpose of the second meeting is to present initial transit service scenarios to the community and gather specific feedback on preferences, balanced against funding constraints. At this time, we will also prepare an online comment form requesting specific input from the public, including their evaluation of the transit service options presented and their level of support for, or opposition to, each of the transit service options. This will provide an opportunity for those unable to attend the community meeting to provide feedback. The input gained from the community transit service options workshop and the online comment form will help determine the recommended service plan.

Task 3 Deliverables:

- ➔ Community survey
- ➔ Onboard survey
- ➔ Project website and promotional materials
- ➔ Community meetings, meeting materials (displays, handouts, sign-in sheets), and meeting summaries
- ➔ Spanish translation services (surveys, outreach materials, meetings)

TASK 4: EVALUATION OF EXISTING SERVICE & RIDERSHIP

To create the foundation for reimagining the CTP system and preparing the TDP, our team will perform a thorough evaluation of current and pre-pandemic services using strategies including:

System, Service Type, and Route Performance

COVID-19 has impacted how all transit agencies operate and many, like CTP, have shifted from fixed-route service to other service delivery models in order to leverage vehicles and improve performance. For this analysis, it will be important to evaluate pre-pandemic fixed-route service (systemwide and by individual route) and ADA paratransit service, as well as the current on-demand service. Data to be analyzed will include:

- Hours of operation and level of service
- Passenger ridership data; trip origin/destination, patterns, and purposes
- Performance measures
- Existing fleet size, condition, and use
- Operational infrastructure usage and performance
- Financials, including fares

From these data, we will develop route profiles showing the route alignment, passenger characteristics, and performance measures. For each route, on-time performance, passengers per hour, cost per passenger, route connectivity, populations served, and primary origin-destination information will be reported.

Development of a Cost Allocation Model

Our team will create a cost-structure methodology for existing services, under the current operating model, based on financial reports and established budgets. This cost allocation model will quantify fixed and variable costs and will serve as a valuable tool for determining cost of adding or reducing services under various service development models.

Peer Comparison

As part of this Task, we will conduct a peer comparison of similar transit agencies in terms of existing service costs, delivery models, efficiency, and effectiveness. Our team will identify 5-10 similar peers to CTP, using data from the National Transit Database (NTD), the Wyoming Department of Transportation (WyDOT), and other sources as available. The selection of peer communities will be based on input from the PSC.

Review Existing Service Standards

We will review the current service standards to understand whether they reflect the stated organizational goals and if they provide helpful feedback to management. We will compare stated service standards to actual service operated to understand whether updates are needed. In evaluating and suggesting potential new service standards, we will create options for standards, based on ability to measure with accurate data, ease of ongoing tracking, and potential to provide more meaningful standards that measure the impact of the service on the mobility of the community.

Inventory of Existing Amenities

Our team will do an on-the-ground review of the existing transit amenities that help provide a safer and more comfortable passenger experience. Using a “new user” perspective, we will understand how easy it is to use and understand the current system, from finding bus stops, navigating the system, and waiting for the bus. How comfortable and safe do new passengers feel? How well are stops signed? Where are the opportunities for improvements in transit amenities? We will ask these questions as we review the state of the current system.

The existing fleet will be reviewed with regard to size, age, and replacement schedule. Ridership levels will be examined to assess the appropriate vehicle capacity for each route. Existing operating, maintenance, and passenger facilities will be reviewed and compared with forecast requirements to define needed improvements and expansions.

Task 4 Deliverables:

- ➔ The results and analysis of Task 4 will be included in Interim Report #1.

TASK 5: EVALUATION OF NEEDED CHANGES OR EXPANSION IN SERVICE & AMENITIES

Transit Needs and Demand Assessment

LSC has performed research for the Transit Cooperative Research Program in transit demand estimation. We have staff who have worked for years with travel models and have experience developing quantitative estimates of transportation needs and potential demand. We will develop a fixed-route transit demand model calibrated to the pre-pandemic service and ridership. We will use this model in conjunction with ACS data to develop estimates of demand for unserved areas and areas of possible future development. A calibrated transit demand model is needed to determine the level of demand for proposed route changes or service to new areas. We will also develop a transit demand model for the demand-response service to evaluate potential changes in the complementary paratransit and demand-response service which might result from proposed service changes. These quantitative estimates will be combined with the more qualitative statements of need obtained through input from riders and the public to gain a comprehensive picture of existing unmet and future transit needs.

First and Last Mile Gap Analysis

Fehr & Peers has extensive experience incorporating access to transit and multimodal connectivity into our transit planning efforts. A seamless user experience across multimodal transportation modes with transit at the center of the experience is the goal. We will review the current bicycle and pedestrian network and infrastructure to assess strengths and define multimodal opportunities and strategies for the TDP. We will also examine opportunities for better integration with potential Transportation Network Companies (TNCs), such as Uber and Lyft, depending on service availability. The new Cheyenne microtransit program will also be assessed for seamless integration as a first- and last-mile solution for the fixed-route system. Other community partnerships and possible technology solutions will be evaluated for deployment as ways to mitigate service gaps.

Task 5 Deliverables:

- ➔ The results and analysis of Task 5 will be included in Interim Report #1.

TASK 6: DEVELOPMENT OF RECOMMENDED SERVICE PLANS

Our team approaches transit service planning with no preconceptions and with a “fresh approach” to how a transit service may be operated. Service scenarios will be developed to meet the needs of the community, as identified through the data collection, current and pre-pandemic service analysis, and outreach processes described in previous tasks.

The preliminary service scenarios will incorporate various service concepts and alternative service delivery models (building on CTP’s existing success with microtransit). These options will be configured within the existing hours of service with opportunities identified for growth, should funding become available. We will also take into account the future timeline for implementation of potential services (within 0-to-2-years, 2-to-5-years, and 5-to-10-years). Throughout the development of the service scenarios, input from the public and riders will be incorporated. All service alternatives will be evaluated against strategic questions about tradeoffs and considerations, including:

- What is the overall service philosophy: geographic-coverage system, high-frequency intensive system, lifeline system for the transit dependent, or commuter-focused?
- What are the efficiency tradeoffs in terms of ridership, costs, and travel times?
- What is the estimated relative performance of corridors in areas of ridership demand, costs, and safety?

We will present the initial scenarios in Interim Report #2 and at meetings to the PSC and the public for input and feedback. Based on the feedback received, we will refine the concepts and develop the recommended service plans, including routing structure and bus stops, timetables, service hours and operating details, ridership forecasts, performance metrics, cost estimates, and any potential policy changes needed for implementation. The recommended service plans will be presented in Interim Report #3.

Task 6 Deliverables:

- ➔ Initial service alternatives will be presented in Interim Report #2 to allow for feedback from the PSC and the public.
- ➔ Interim Report #3 will include the recommended service plans.

TASK 7 – 10-YEAR CAPITAL ASSET PLAN

To complement the service plans and provide a compliant Transit Asset Management (TAM) Plan, a complete ten-year Capital Improvement Plan will be developed to reflect projected investments in the Cheyenne Transit Program fleet, bus stops, technology, facilities, park-and-ride lots, and supporting on-street infrastructure. The plan will be structured with a timeline that will show how each project, especially fleet replacements, will need to occur in order to maintain a state of good repair. The impact of the service plans, and potential for more of a shift to microtransit, will be analyzed and included in the ten-year investments.

Our team will generate a range of funding and financing options matched to specific capital projects, according to applicability. In addition to local and state funding resources, the team will evaluate federal sources, such as the Federal Transit Administration's (FTA) Small Starts, New Starts, and Low/No Emission Bus Grants, and the U.S. Department of Transportation's Better Utilizing Investments to Leverage Development (BUILD Transportation Discretionary Grant).

Task 7 Deliverables:

- The Capital Asset Plan will be included in Interim Report #3.

TASK 8: PERFORMANCE INDICATORS & TARGETS

Perhaps as vital to the long-term success of the TDP's vision is the monitoring program set up to track the progress of the various new and existing services, and to "flag" potential problems as they occur. This monitoring program will identify the data collection and analysis of established performance measures, as well as define new measures and associated benchmarks. The measures should have acceptable ranges, based on similar communities (using the same peer communities included in the peer comparison in Task 5), goals, targets, and considerations for how to make adjustments when particular metrics fall below goals. LSC has a depth of experience developing these performance measures and creating systems that allow for easy, ongoing management and updating.

Task 8 Deliverables:

- Interim Report #3 will include the performance indicators and targets.

TASK 9: FINANCIAL PLAN

Our team will develop a 10-year financial plan for the recommended service plans, including operations and capital, using constant dollars and accounting for anticipated inflation and possible changes in funding. The plan will be built around existing resources and will identify potential savings over the current budget or potential funding shortfalls and required revenue to meet the projected expenses. We will also identify potential funding sources including local, state, and federal funding, as well as other grant opportunities.

Task 9 Deliverables:

- The Financial Plan will be included in Interim Report #3.

TASK 10: DRAFT AND FINAL REPORTS

Prepare Draft Report

The Draft Report will synthesize the work of the interim reports and project deliverables, as well as address input or comments received on them. The Draft Report will be a comprehensive documentation of the study process, methodologies, findings, and recommendations. The PSC, stakeholders, the public,

and other parties identified by the MPO and CTP staff will all have the opportunity to review the Draft Report and provide feedback.

Prepare and Present Final Report

Following review and receipt of comments on the Draft Report, our team will prepare the Final TDP Report. Our team will be on site to present the Final Report to the appropriate governing and advisory bodies. We will provide 10 full-color bound copies of the report for your internal distribution, as well as a digital copy so you can print additional copies if you wish and post on the MPO's website. In addition, we will provide electronic copies of all background information and data used for and developed during the project.

Task 10 Deliverables:

- ➔ Draft Report (10 hard copies, digital PDF copy)
- ➔ Final Report (10 hard copies, digital PDF copy, electronic supporting files) and presentation to appropriate governing and advisory bodies.

EXHIBIT B

Attached to Professional Services Agreement between the City of Cheyenne, Wyoming and LSC Transportation Consultants, Inc. for Planning Services in Support of the 2022 Transportation Development Plan.

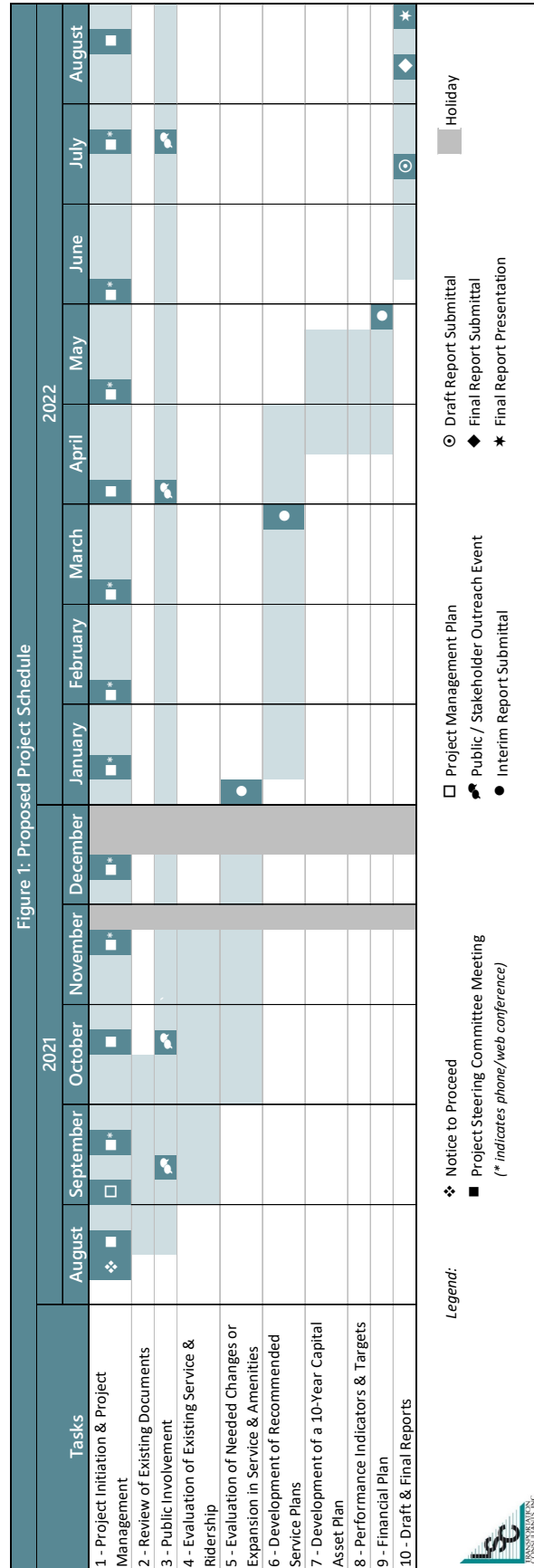


EXHIBIT C

Attached to Professional Services Agreement between the City of Cheyenne, Wyoming and LSC Transportation Consultants, Inc. for Planning Services in Support of the 2022 Transportation Development Plan.

Table 2: Cost Proposal										
Task	LSC						Fehr & Peers			Total Hours
	Project Manager <i>McPhillym</i>	Principal-in-Charge <i>Shaw</i>	Senior Advisor <i>Stoddard</i>	Transportation Planner <i>Marmesh</i>	GIS & Technical Support <i>Watson</i>	Admin Support	Senior Associate <i>Miller</i>	Senior Planner <i>Picard</i>	Public Outreach <i>Brown</i>	
1 - Project Initiation & Project Management	16						8			24
2 - Review of Existing Documents	4			16	16	2	4	8		50
3 - Public Involvement	56			24	8	8	10		32	138
4 - Evaluation of Existing Service & Ridership	28	4	24	24	24	4	4	24		136
5 - Evaluation of Needed Changes or Expansion in Service & Amenities	4	4	16		30	4	16	24		98
6 - Development of Recommended Service Plans	28	8	16	8	24	8	8	2		102
7 - Development of a 10-Year Capital Asset Plan	4	2				2	24	8		40
8 - Performance Indicators & Targets	4	2	24			2				32
9 - Financial Plan	4		16			2				22
10 - Draft & Final Reports	32	2	4	8	20	8	4	2		80
Total Hours	180	22	100	80	122	40	78	68	32	722
<i>Rate with Overhead</i>	\$90	\$210	\$195	\$90	\$70	\$70	\$185	\$150	\$150	
Cost	\$16,200	\$4,620	\$19,500	\$7,200	\$8,540	\$2,800	\$14,430	\$10,200	\$4,800	
Labor Subtotal: \$88,290										
Direct Reimbursable Costs:										
<i>Item</i>										<i>Cost</i>
LSC Travel (transportation, lodging, per diem)										\$5,640
Fehr & Peers Travel (transportation, lodging, per diem)										\$4,281
Translation Services										\$500
Printing/Mailing										\$1,000
Direct Reimbursable Costs Subtotal:										\$11,421
Total Cost :										\$99,711